

2021 P L C (C.S.) 606

[Lahore High Court]

Before Jawad Hassan, J

SHAHID IQBAL

Versus

CHAIRMAN EVACUEE TRUST BOARD and others

Writ Petition No.32015 of 2017, heard on 5th October, 2020.

Civil service---

---Contract of employment, cancellation of---Scope---Petitioner assailed order passed by authorities whereby his request for regularization of services was declined and his contract of employment was also not extended but the petitioner himself marked his attendance in the attendance register by adding his name at his own---Validity---Petitioner was appointed on work charge basis for a period of 89 days and his appointment was purely temporary---Relevant clauses of the agreement explicitly showed that the work charge appointment was only for specific period, which would automatically be terminated on expiry of the period---Petitioner, at the time of joining, had accepted all the terms and conditions of his ad-hoc employment and he could not resile from the same at belated stage---No illegality or perversity was found in the impugned order, which was passed in accordance with law---Constitutional petition was dismissed.

Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note 1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (C.S.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488 and Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 rel.

Ch. Muhammad Awais Zafar for Petitioner.

Rana Zahid Nasim Shahid for Respondents.

Date of hearing: 5th October, 2020.

JUDGMENT

JAWAD HASSAN, J.---The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging a quasi-judicial order dated 04.05.2017 passed by the Respondent No.1 pursuant to directions issued in W.P.No.30934 of 2016 dated 03.03.2017.

2. Facts of the case, as per petition, are that the Petitioner was appointed as Security Guard by the Respondents temporarily for a period of 89 days and one-time temporary extension was granted to him. After expiry of his period of contract, he filed grievance petition before the Labour Court for regularization of his services but due to enactment of Industrial Relations Act, 2012, his petition was returned to him for filing the same before National Industrial Relations Commission (NIRC). However, the Respondents filed application under Order VII, Rule 11, C.P.C., for rejection of grievance petition which was allowed vide order dated 27.09.2016. The Petitioner, after expiry of his contract, filed two Writ Petitions bearing Nos.16894 of 2016 and 30934 of 2016. First writ petition was regarding release of his salary whereas the second writ petition was filed against the Respondents for withholding of salary and for regularization of his services. Both the writ petitions were disposed of on 23.06.2016 and 03.03.2017 respectively. The impugned order was passed pursuant to directions issued in W.P. No.30934 of 2016 whereby his request for regularization of service was rejected. Hence, this writ Petition.

3. Learned counsel for the Petitioner inter alia contended that the impugned order is the result of mis-reading and non-reading of relevant law; that the Petitioner remained in service after expiry of his second extension however, the Respondent No.1 has ignored the documentary evidence; that the Petitioner was appointed against a permanent post and his remaining in service was duly established from the attendance register but even then his request was rejected which is illegal and against his fundamental rights; that discriminatory treatment was metted out with him by the Respondents because they regularized the services of certain persons on the directions of this Court.

4. On the other hand, learned counsel for the Respondents filed report and parawise comments and vehemently opposed the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the Petitioner was appointed purely on temporary basis and after expiry of his second time extension in contract he was no more the employee of the Respondents and has no right to claim regularization of daily wages services.

5. I have heard learned counsel for the parties and gone through the available record.

6. Basically the Petitioner has disputed order dated 04.05.2017. The concluding portion of the same is reproduced hereunder:

"After listening the contention of the petitioner and perusal of record, it was concluded that appointment of the petitioner Mr. Shahid Iqbal, as security guard was made on daily wages basis. The petitioner was never granted extension for third time tenure after 27.05.2013 but he marked his attendance in the attendance register by adding his name at his own and salary of that period was paid to him as per direction of Lahore High Court, Lahore. So his request for regularization of service was not maintainable as per rules/policy".

7. So far as the ground urged by the Petitioner that he remained in service after expiry of his second extension and ignorance of documentary evidence by the Respondents in the form of attendance register is concerned, in the impugned order the Respondent No.1 has stated

that the Petitioner marked his attendance in the attendance register by adding his name at his own. The said version is also supported the Respondents in the report and parawise comments where they stated that the Petitioner was appointed as Security Guard and his appointment was purely temporary on work charge basis for a period of 89-days and on expiry of initial contract, the Petitioner was re-appointed on the same terms and conditions vide order dated 15.02.2013. The said period was expired w.e.f. 14.05.2013 and the Petitioner was no more employee w.e.f. 15.03.2013. It was further stated that the Petitioner, with active connivance of concerned officials got recorded his name in the attendance register and marked his attendance from 15.05.2013 to 30.08.2013. It is noted that the Petitioner approached Labour Court on 23.07.2013 by filing grievance petition for seeking his regularization of his daily wages service however, said petition was returned on the ground to file the same before National Industrial Relations Commission (NIRC) due to enactment of National Industrial Act, 2012. The Petitioner filed fresh petition before NIRC which was dismissed vide order dated 27.09.2016 but instead of challenging said order, he has been filing writ petition before this Court for seeking release of his salary and for regularization of his service by concealing aforesaid facts hence his regularization was rightly rejected by the Respondents vide impugned order.

8. Another ground taken by the Petitioner is that discriminatory treatment has been metted with him by the Respondents because they regularized the services of certain persons on the directions of this Court passed in W.P. No.10018 of 2014 on 28.01.2016. The said ground of the Petitioner is not valid because in aforesaid writ petition, the persons whose services were terminated without regular inquiry, have approached the Court and said petition was allowed which has no relevance of the case in hand as the petitioner was no more in service after expiry of his second extension. Even otherwise the Petitioner has not brought on record any documentary proof with regard to grant of third time extension in contract. Thus, this ground is also having no force.

9. Yet another ground was alleged by the Petitioner that he was appointed as a Security Guard against a permanent post. It evinces from the record that the Petitioner was appointed on work charge basis vide order dated 21.11.2012 for a period of 89-days. His appointment was purely temporary. He, after accepting the terms and conditions of his contract employment submitted his joining report on 22.11.2012. Specific terms in the employment contract, containing certain terms and conditions, were inserted which reads as follows:

1. The appointment shall be purely temporary;
2. Their His can be terminated at any time without assigning any reason or notice.
3. His appointment will not create any rights towards regular employment.

10. The above Clauses explicitly show that the work charge appointment is only for specific period which shall automatically be terminated on the expiry of period, mentioned in appointment letters and also that will not confer any right of regular appointment meaning thereby that the Petitioner has no vested right that his period of service be extended for further period.

11. From the above facts and circumstances, I am of the considered view that the

Petitioner, at the time of joining, has accepted all the terms and conditions of his ad-hoc employment, cannot resile from the same at belated stage. I see no illegality or perversity in the impugned orders which have been passed in accordance with law and therefore, cannot be interfered with. I am fortified my view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note 1) in which it has been held as under:

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

12. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758)."

13. The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

14. In case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that

"employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

15. In view of above discussion, I am not inclined to interfere with the impugned order which otherwise has been passed aptly. Resultantly, the instant petition stands dismissed.

